

DELHI END-OF-LIFE VEHICLE (ELV) REGULATIONS AND PENALTIES

Mandated by the National Green Tribunal (NGT) and upheld by the Supreme Court of India.

1. VEHICLE LIFE LIMITS IN DELHI-NCR

- Diesel Vehicles: Maximum registration and road life of 10 years.
- Petrol & CNG Vehicles: Maximum registration and road life of 15 years.
- Overage vehicles are legally classified as End-of-Life Vehicles (ELVs) and cannot ply or be parked in public places in the NCR.

2. PENALTIES AND FINES

- For Four-Wheelers (Cars/LMV/HMV): A flat fine of Rs. 10,000.
- For Two-Wheelers: A flat fine of Rs. 5,000.
- Additional towing and parking charges apply for transport to the impound yard.
- Violation is prosecuted under Section 182B of the Motor Vehicles (Amendment) Act 2019 (Driving an overage vehicle).

3. IMPOUNDMENT AND "STRIKE" POLICY

- First Strike (Private Vehicles): If a private overage vehicle is impounded for the first time, it can be released to the owner upon:
 - a) Payment of the prescribed fine (Rs. 10,000 for cars, Rs. 5,000 for bikes).
 - b) Signing a legal undertaking promising to immediately remove the vehicle from Delhi-NCR territory.
 - c) The vehicle must be moved out of Delhi-NCR under a No Objection Certificate (NOC) for registration in another state.
- Second Strike (Private Vehicles): If the same private vehicle is caught a second time, it will NOT be released. It is sent directly to the scrap yard.
- Commercial & Transport Vehicles: Any commercial or transport diesel vehicle over 10 years old or petrol vehicle over 15 years old is classified as an overage vehicle.

4. LEGAL ORIGINS AND AUTHORITY

- National Green Tribunal (NGT) order in Vardhaman Kaushik vs. Union of India.
- Supreme Court of India order in M.C. Mehta vs. Union of India.
- Guidelines issued by the Transport Department, Government of NCT of Delhi.